

HEADNOTE

“1. According to R. 262A.4 RoP, the representative of the other parties must be invited to submit written comments before a confidentiality order is issued. In the interest of effective protection of trade secrets, however, the requirement of a hearing before issuing the order applies only to the final confidentiality order and access restriction. In the interest of effective protection of trade secrets pursuant to Directive (EU) 2016/943, access may nonetheless be further restricted until a final order is issued, in particular to the person of the claimant's representative. Discussion of the confidentiality application with the party is possible using redacted versions of the documents concerned (following UPC_CFI_22/2023 (Local Division Hamburg), Order of 2 December 2023).

2. In order to take account of the special nature of interim proceedings, the circle of persons required for a fair procedure (R. 262A.6 RoP) must be chosen in such a way that the party affected by the interim confidentiality order is, taking into account the other party's interest in confidentiality, fully capable of working and able to take a position on every point raised by the other party. Therefore, as a general rule, an interim restriction to four legal representatives (two partners and two associates to support them), two patent attorneys and three representatives of the client appears appropriate (UPC_CFI_463/2023 (Local Division Düsseldorf), Order of 14 February 2024), whereby this circle of persons may be expanded to include two legal assistants if necessary.

3. Since the circle of persons granted access to the (allegedly) confidential information must not exceed the scope necessary to comply with the parties' right to an effective remedy and a fair procedure in accordance with R. 262.6 sentence 1 RoP, the circle of persons entitled to access must always be subject to an individual case examination taking into account the foregoing considerations and, if necessary and required, be adapted to the requirements of the respective proceedings.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Confidentiality order

PATENT
EP 2 697 391 B1

Method and product for localised or spatial detection of nucleic acid in a tissue sample

KEYWORDS

Confidentiality protection

Confidentiality request

Trade secrets

Rule 262a application

Preliminary order

Right to be heard

Expedited proceedings

Preliminary confidentiality order

Rule 262A Protection of Confidential Information**SUMMARY**

The Local Division in Düsseldorf issued a confidentiality order. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, while other parties must generally be invited to comment before a confidentiality order is issued, preliminary access restrictions can be imposed immediately to protect trade secrets under EU law, with the right to be heard reserved for the final order. To ensure fair proceedings in interim matters, the court must limit access to a defined circle of persons, typically four legal representatives, two patent attorneys, and three client representatives, chosen to enable the affected party to effectively respond while respecting the other party's confidentiality interests. Since the number of persons with access must not exceed what is necessary to protect each party's right to a fair procedure, the permitted circle of persons must be individually assessed in each case and adjusted as the proceedings require.